

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUOE054815: CODY MAC GREEN vs WESTLAKE COACH COMPANY, LLC

09/09/2026 in Department 43

**Motion TO LIFT STAY FOR BINDING ARBITRATION DUE TO DEFENDANT NON
PAYMENT OF ARBITRATION FEES**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion to Lift Stay for Binding Arbitration

Tentative Ruling: Plaintiff's Motion to Lift Stay for Binding Arbitration is DENIED. The parties are ordered to continue the arbitration process.

The hearing regarding the status of the arbitration is continued from November 4, 2026, to June 8, 2027, at 8:30 a.m. in Courtroom 43.

Defendant is ordered to serve notice of the Court's ruling.

DISCUSSION

This motion was continued by the Court from August 12, 2026, to permit Defendant to establish, through admissible evidence, that the delay in payment of the JAMS' invoice was not willful, fraudulent, or grossly negligent. The Court also directed Plaintiff to file a declaration on or before

August 28, 2026, establishing, through admissible evidence, the legal fees and expenses resulting from the delay, for the Court to use in determining adequate compensation in the event the motion is granted.

On August 28, 2026, Defendant submitted the Declaration of Adrian Gonzalez, the Supervisor of Accounts Payable Clerk for Defendant. Mr. Gonzalez declared that on June 19, 2026, he was instructed to pay an invoice to JAMS in the amount of \$10,000 and he posted the invoice internally that same day. The check was cut on June 25, 2026, six days later, because the person authorized to execute the check had to physically drive to the Accounts Payable Department, located at a different address than the dealership. On July 8, 2026, 13 days later, the check was mailed to JAMS via first class mail. Mr. Gonzalez attributed the mailing delay to the Fourth of July holiday. Finally, Mr. Gonzalez declared that he did not know the check was time sensitive and that had he known he would have expedited sending the check to the dealership to get immediate signatures, or he would have confirmed whether the payment could have been made by electronic transfer.

Plaintiff did not submit a declaration in support of an order for compensation.

In *Hohenshelt v. Superior Court* (2025) 18 Cal. 5th 310, 332-333, our Supreme Court held:

“[A] nonperforming party is not entitled to relief from forfeiture when its delay was willful, fraudulent, or grossly negligent. But “when it appears that [the party] has acted in good faith, given some reasonable excuse for the delay, and thereafter tendered performance promptly and with reasonable diligence,” equity can excuse nonperformance so long as the breaching party can and does “adequately compensate[]” the nonbreaching party for any harm caused by the delay.”

Based on the declaration of Mr. Gonzalez, Defendant’s delay was not willful, fraudulent, or grossly negligent. The delay was inadvertent and is found to be excusable neglect .

Plaintiff has not submitted evidence of expenses resulting from Defendant’s delay, so no compensation is awarded.